TechCospace

Date: 1/05/2019

Offer Of Employment

Dear **Pintoo Kumar,**

Congratulations!
You have been selected as the ideal candidate for the position of **" Web Developer "**.

We are pleased to extend the following offer of employment to you on behalf of Techcospace. Your joining date is **1 May 2019.**

We believe that your knowledge, skills, and experience would be an ideal fit for our growing team. We hope you will enjoy your role and make a significant contribution to the overall success of our organization

As discussed, your total compensation will be **(1.2 LPA).** The working hours will be **11:00 am to 8:00 pm (IST)** for five days in a week **(Remote)**, **Timings can be change as per company requirement**. You will be on probation for a period of 6 months.

The offer extended to you is based on the information provided by you. Nevertheless, in the event of any inconsistency or incomplete submission of the documents requested by us, we reserve the right to withdraw our employment offer.

We are all looking forward to having you on our team.

Best Regards,
TechCospace Technologies Private Limited
Ayush Gupta
Director



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H-95, Sector – 63,
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Annexure A

Probationary Period

You will be under probation for a period of three (3) months from the date of your joining the services. Your performance would be assessed during this period and the suitability for employment and performance assessment would be considered for the confirmation of the services. The organization also reserves the right to consider the confirmation of services even before the stipulated period of (3) months and as per the performance observation during the above specified probation period.

Clause 1) Your performance during the probation period would be assessed post the completion of the probation period and your suitability for permanent employment shall be taken into consideration for the confirmation of your services with Techcospace. In case of non- satisfactory performance during the probation period, the organization reserves the right to terminate your employment, you will be given 15 days of written notice or extension of probation period to maximum one month as per the discretion of the management on an individual basis.

Clause 2) In case you decide to terminate your employment with the organization, you are required to provide not less than 30 days of written notice period during the probation period and not less than 60 days written notice period post the confirmation of your employment with the organization.

Place of posting

You will be posted at Delhi/NCR or Remote. Your services are liable to be transferred, at the sole discretion of Management, in such other capacity as the company may determine, to any department / section, location, associate, sister concern or subsidiary, at any place in India or abroad, whether existing today or which may come up in future. In such a case, you will be governed by the terms and conditions of the service applicable at the new placement location.

Hours of Work

The normal working days are from Monday to Friday. You will be required to work for such hours as necessary for the proper discharge of your duties to the Company. The normal working hours are from 11:00 AM to 8:00 PM and you are expected to follow stipulated working hours and if necessary, for additional hours depending on your responsibilities.

Leave/Holidays

You are entitled to Casual leave and Sick leave on a pro-rata basis as per your date of joining .

The Company shall notify a list of declared holidays at the beginning of each year.

It is necessary to inform your supervisor and the HR department at least 5 days in advance if you plan to take leave. Any leave taken without prior notice or proper communication will result in a deduction of 2 days' salary. Adhering to our leave policies is essential to ensure smooth operations and avoid unnecessary disruptions. In cases of emergency, prompt notification is expected. There are no paid leaves during the probation period.

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Nature of duties/Responsibilities

You will perform to the best of your ability all the duties as are inherent in your post and such additional duties as the company may call upon you to perform, from time to time.

While employed by the Company, you agree to work on a full-time basis exclusively for the Company and agree that you shall not, while you are employed by the Company, be employed or engaged in any capacity, in promoting, undertaking or carrying on

any other business that competes with the Company or interferes or could reasonably interfere with your duties to the Company without our prior written permission. You cannot work with the company's client and with the organizations serving in the same industry directly or indirectly during the tenure of the employment as well as after the termination for a period of 2 years. In case of any breach of trust with the organization the employee is bound to compensate the organization for the losses and will face legal consequences.

Non-Solicitation

You hereby agree that, while you are employed by Company and for two (2) year following the termination of your employment with Company, you will not (i) recruit, attempt to recruit or directly or indirectly participate in the recruitment of, any Company employee or (ii) directly or indirectly solicit, attempt to solicit, canvass or interfere with any customer or supplier of Company in a manner that conflicts with or interferes in the business of Company as conducted with such customer or supplier.

Company property

You will always maintain in good condition Company property, which may be entrusted to you for official use during the course of your employment and shall return all such property to the Company prior to relinquishment of your charge, failing which the cost of the same will be recovered from you by the Company. You are not allowed to use the code / any other internal software for her/his personal use.

Representation

You hereby represent and warrant to Company that you are not party to any written or oral agreement with any third party that would restrict your ability to enter into this Agreement or the Confidentiality and Proprietary Information Agreement or to perform your obligations hereunder and that you will not, by joining Company, breach any non- disclosure, proprietary rights, non-competition, non-solicitation or other covenant in favor of any third party.

Borrowing/accepting gifts

You will not borrow or accept any money, gift, reward or compensation for your personal gains from or otherwise place yourself under pecuniary obligation to any person/client with whom you may be having official dealings.

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Policies and Standard

Company has established a variety of policies and standards that ensure a safe and enjoyable working environment. During the period of your employment with us, you agree to be bound by these policies and standards and any future policies and standards that are reasonably introduced by the Company. It is agreed that the introduction and administration of these policies is within the sole discretion of the Company and that these policies do not form a part of this Agreement. It is agreed that if a Company introduces, amends or deletes employment-related policies as conditions warrant that such introduction, deletion or amendment does not constitute a breach of this Agreement.

Termination

Upon termination of employment, you will immediately hand over to the Company all correspondence, specifications, formulae, books, documents, market data, cost data, drawings, affects or records belonging to the Company or relating to its business and shall not retain or make copies of these items.

Upon termination of employment, you will also return all company property, which may be in your possession.

Notwithstanding the above condition, the contract of service may also be terminated because of under mentioned stipulations. This will be without payment of any compensation.

- If you fail, refuse or neglect to carry out and perform your duties assigned to you by the company. For loss
- of confidence in you by the company for any of the acts committed by you.
- If you are found to be guilty of fraud, insubordination or misconduct whether in course of performance of duties entrusted to you or otherwise.
- If you are found unfit for being entrusted with the responsible work commensurate with your position in consequences of any misconduct, moral turpitude.
- If you commit any act prejudicial to the continuing good relationship between you and the company. If you
- commit breach of any of the terms of this letter of appointment.

In case we terminate your service due to your actual or likely breach of Code of Conduct, Policies, or for an event of sexual harassment, any offense, breach of laws, or under any disciplinary proceeding or like reasons of default, which results in termination for cause, then no notice or notice pay in lieu of notice shall be due to you

Intellectual Property Right:

If during the period of your employment with us you achieve any invention, process improvement, operational improvement, or other process/method likely to result in more efficient operation of any of the activities of the company, the company shall be entitled to use, utilize and exploit such improvement and you shall assign all rights thereof to the company for the purpose of seeking any patent rights or for any other purpose. The company shall have the sole ownership rights of all the intellectual property rights that you may create during the tenure of association with the company including but not limited to the creative concept that you may develop during your association with the company.

Confidential Information

- During your employment with the Company, you will devote your whole time, attention and skill to the best of your ability

for its business. You shall not, directly or indirectly, engage or associate yourself with, be connected with, concerned, employed or engaged in any other business or activities or any other post or work part time or pursue any course of study whatsoever, without the prior permission of the Company.

- You must always maintain the highest degree of confidentiality and keep as confidential the records, documents and other Confidential Information relating to the business of the Company which may be known to you or confided in you by any means and you will use such records, documents and information only in a duly authorized manner in the interest of the Company. For the purposes of this clause 'Confidential Information' means information about the Company's business and that of its customers which is not available to the general public and which may be learnt by you in the course of your employment. This includes, but is not limited to, information relating to the organization, its customer lists, employment policies, personnel, and information about the Company's products, processes including ideas, concepts,

projections, technology, manuals, drawing, designs, specifications, and all papers, resumes, records and other documents containing such Confidential Information.

- At no time, will you remove any Confidential Information from the office without permission.
- Your duty to safeguard and not disclose Confidential Information will survive the expiration or termination of this Agreement and/or your employment with the Company.
- Breach of the conditions of this clause will render you liable to summary dismissal under clause above in addition to any other remedy the Company may have against you in law.

Notices

Notices may be given by you to the Company at its registered office address. Notices may be given by the Company to you at the address intimated by you in the official records.

Governing Law/Jurisdiction

Your employment with the Company is subject to Indian laws. All disputes shall be subject to the jurisdiction of Gautam Buddha Nagar only.

Miscellaneous

- Your services shall be liable to be transferred to any of the company's unit, branch, department, respective office or to business in any place in India at any time as per the requirement of the company's business. You will also be required to carry out the activities of the associate companies or companies under the same management.
- You will be entitled to casual and sick leave as per rules of the company, framed/ to be framed from time to time.

  You will retire from the service of the company on attaining the age of 58 years or earlier if found unfit on medical/health ground.
- Any invention or discovery made by you or with your assistance during the employment shall belong to and shall be absolute property of the company.

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- You will not divulge or give out to anyone in any manner, particulars or details of the company's trade, method of manufacture, business particulars etc.
- If your duties or compensation should change during the course of your employment with the Company, the validity of our agreement will not be affected. In addition, if one or more of the provisions in our agreement are deemed void by law, then the remaining provisions will continue in full force and effect.
- You will be bound by any rules, regulations, office orders, standing orders of the company and circulars in existence and framed by the company from time to time in relation to your service conditions, which will from part of your terms of employment.
- You will, in your own interest, keep the management informed about any change in your residential / postal address for the company's records.

Appointment in Good Faith:

It must be specifically understood that this offer is made based on your proficiency on technical/professional skills you have declared to possess as per your application for employment and your ability to handle any assignment/job independently. In case at a later date any of your statements/particulars furnished are found to be false or misleading or your performance is not up to the mark or falls short of the minimum standard set by the company, the company shall have the right to terminate your services forthwith without giving any notice notwithstanding any other terms and conditions stipulated therein.

Offer Acceptance

Declaration

I have read and completely understood the terms and conditions of my appointment as set out in the offer of appointment issued to me. I agree to abide and be bound by the terms and conditions mentioned in the aforesaid offer of appointment and I accept the same.

I hereby declare that the information provided is true and correct. I also understand that any willful dishonesty may render for refusal of this application or immediate termination of employment.

Employee name:

Signature:

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Annexure B

This is your expected monthly salary structure.

Salary Component	Amount
Basic Salary	5,000
HRA	2,500
Conveyance allowance	2,500
Total	**10,000**

Note: You will receive salary, and all other benefits forming part of your remuneration package subject to, and after, deduction of TDS, PF, ESI and professional taxes in accordance with applicable law.

Employee Name: **Pintoo Kumar**

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